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Case Number: 26STLC03015 Hearing Date: July 22, 2026 Dept: 26

TENTATIVE RULING:

The Demurrer to
the First Amended Complaint filed by Defendants David Javdan, D.D.S. and David
Javdan, D.D.S., Inc. dba Beverly Hills Prestige Dental Group is overruled.

Defendants'

Answer due within 10 days from service of notice of this Order.

Analysis:

Plaintiff Allie Ko ("Plaintiff"), in propria persona,
filed the instant action for (1) professional negligence; and (2) intentional
misrepresentation, in the alternative, negligent misrepresentation, against
Defendants David Javdan, D.D.S. (erroneously sued herein as David Javdan, DDS) ("Defendant
Javdan") and David Javdan, D.D.S., Inc. dba Beverly Hills Prestige Dental Group
(erroneously sued herein as Beverly Hills Prestige Dental Group) ("Defendant
BHPDG") on May 1, 2025. Plaintiff filed the First Amended Complaint on May 26,
2026.

Defendants filed the instant Demurrer to the
First Amended Complaint on June 16, 2026. Plaintiff filed an opposition on June
24, 2026 and Defendants replied on July 13, 2026.

Discussion

The Demurrer is accompanied by a
meet and confer declaration as required by Code of Civil Procedure section

430.41. (Bridwell Decl., ¶¶3-4.) Defendants demur to the second cause of action – for intentional misrepresentation, in the alternative, negligent misrepresentation – for failure to allege sufficient facts and uncertainty. (Citing Code Civ. Proc., § 430.10, subds. (e) and (f).) Because special demurrers are not permitted in the Limited Civil Court, the Court will not consider Defendants' demurrer for uncertainty. (Code Civ. Proc., § 92, subd. (c).)

In support of the second cause of action, the First Amended Complaint alleges that during Plaintiff's visit to Defendants' office on September 22 and 23, 2025, Defendant Javdan and Defendants' staff misrepresented that: (1) Plaintiff had no cavities; (2) Plaintiff's tooth #28 pain would be "fine in a couple of days," with any remaining pain attributable to the deep cleaning; (3) Plaintiff's gum disease had been cleared by the deep cleaning; and (4) Plaintiff's clinical needs going forward were limited to cosmetic fillings and Invisalign orthodontic treatment. (FAC, ¶39.) Each of these representations was allegedly false at the time it was made, which Defendants knew or should have known in the exercise of reasonable care. (Id. at ¶¶40-41.) The decay on tooth #28 was visible on Plaintiff's x-ray, 360-degree panoramic scan, and additional intraoral scan, which Defendants had at the time. (Id at ¶41.)

The elements of a cause of action for intentional misrepresentation are (1) a misrepresentation (including a false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to induce reliance (i.e., intent to defraud); (4) actual and justifiable reliance on the misrepresentation; and (5) resulting damage. (Chapman v. Skype Inc., 220 Cal.App.4th 217, 230-231.) Fraud must be pleaded with particularity, which "necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) The First Amended Complaint alleges that the misrepresentations were made by "Dr. Javdan and Defendants' staff". (FAC, ¶39.) The Demurrer cites no authority for its argument that these allegations are insufficient. (Demurrer, p. 7:4-5.)

Defendants also argue that their knowledge of the falsity of the statements is not sufficiently alleged because it relies on the contents of Plaintiff's scans and x-rays to impute knowledge to Defendants. The First Amended Complaint, however, specifically alleges that Defendants reviewed the imaging and recognized the decay, but still made the

misrepresentations in order to move on to selling Plaintiff other services.

(FAC, ¶¶41-42.) These facts adequately allege Defendants' knowledge of the true condition of Plaintiff's teeth, and deliberate misrepresentation of the same.

Defendants contend that California

law does not permit a fraud claim to rest solely on a medical opinion, citing *Wang v. FMC Corp.* (9th Cir. 1992) 975 F.2d 1412, 1414, overruled on other grounds by *United States ex rel. Hartpence v. Kinetic Concepts, Inc.*, 792 F.3d 1121 (9th Cir. 2015) (en banc).

(Dem. at 7.) The case concerned an

appeal from an order granting defendant's motion for summary judgment in a False Claims Act case. The decision does

not speak to pleading requirements nor address California law. (See *id.* at 1420-21.) It is not relevant to this Demurrer.

As indicated, Plaintiff pleads negligent

representation in the alternative. The

elements of a cause of action for negligent misrepresentation are (1) a misrepresentation of a past or existing material fact; (2) without reasonable ground for believing it to be true; (3) with intent to induce another's reliance on the fact misrepresented; (4) justifiable reliance on the misrepresentation; and (5) resulting damage. (*Chapman, supra*, 220 Cal.App.4th at 231.) Defendants contend that Plaintiff "again has failed to allege any misrepresentation by Dr. Javdan versus his professional opinions."

(Dem. at 7.) Again, the Court finds

the allegations sufficient to plead misrepresentation, without a reasonable basis. (See FAC, ¶¶40-41.) Defendants identify no other basis to find the facts pled insufficient.

Defendants argue that pleading in

the two theories in the alternative is improper but cite no authority other

than that it renders the cause of action uncertain. (Dem. at 8.) As indicated above, that is not a basis for demurrer in a Limited Civil court.

For all of the foregoing reasons, the Court overrules the Demurrer.

Conclusion

The Demurrer to

the First Amended Complaint filed by Defendants David Javdan, D.D.S. and David Javdan, D.D.S., Inc. dba Beverly Hills Prestige Dental Group is overruled.

Defendants'

Answer due within 10 days from service of notice of this Order.

Moving party to give notice.